

23TRCV03261 23TRCV03261

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 23TRCV03261 Hearing Date: July 27, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

SAMMY
KIFLU,

Plaintiff

Case No.:

23TRCV03261

vs.

[Tentative]

RULING RE:

MOTION

TO VACATE ORDER GRANTING SUMMARY JUDGMENT

THE

WESTIN LOS ANGELES AIRPORT et al.,

Defendants.

Hearing

Date: July 27, 2026

Department

P, Judge David K. Reinert

Motion

to Vacate Order Granting Summary Judgment

Moving

Party: Plaintiff

Sammy Kiflu

Responding Party: Defendants Wesco Specialist, Inc.

and Westin Operator, LLC

RULING

The court

considered the moving papers, opposition, and reply. Plaintiff's Motion to Vacate the Order Granting Summary Judgment is DENIED.

PROCEDURAL BACKGROUND

On October 4, 2023, Plaintiff Sammy Kiflu ("Plaintiff") filed a complaint against Defendants The Westin Los Angeles Airport, Marriott International, Inc., Wesco Transportation LLC, John Doe, and DOES 1 through 100, inclusive, alleging five causes of action for: (1) Assault; (2) Battery; (3) Intentional Infliction of Emotional Distress; (4) Negligence; and (5) Negligent Hiring, Supervision, and Retention. Plaintiff's first three causes of action are alleged only against Defendant John Doe.

On May 30, 2024, Plaintiff filed an amendment identifying Defendant Westin Operator LLC ("Westin Operator") as DOE 1. On June 7, 2024, Plaintiff filed an amendment identifying Defendant Wesco Specialist Inc. ("Wesco

Specialist") as DOE 2.

On April 9, 2026, Defendants Westin Operator and Wesco Specialist filed a motion for summary judgment or summary adjudication. On June 18, 2026, Westin Operator and Wesco Specialist filed a Notice of Non-Receipt of Opposition to their motion. On June 23, 2026, Plaintiff filed an opposition. On July 2, 2026, the court granted the motion for summary judgment.

On July 2, 2026, Plaintiff filed the instant motion. On July 14, 2026, Defendants Westin Operator and Wesco Specialist (collectively, "Responding Defendants") filed an opposition. On July 15, 2026, Plaintiff filed a reply.

FACTUAL BACKGROUND

Plaintiff

alleges that on April 5, 2022, Plaintiff waited at terminal #5 at Los Angeles International Airport ("LAX") to be transported by a shuttle bus (the "Shuttle") to his hotel located at 5400 W. Century Boulevard in Los Angeles, California. (Complaint, ¶ 8.) Plaintiff alleges that he noticed that the Shuttle did not stop at his terminal, and Plaintiff proceeded to the next terminal to board the Shuttle. (Complaint, ¶ 8.) Plaintiff alleges that Defendant John Doe, the Shuttle's operator, stopped at the next terminal and appeared to be upset as Plaintiff attempted to board the Shuttle. (Complaint, ¶ 8.) Plaintiff alleges that Defendant John Doe refused to transport Plaintiff to his hotel. (Complaint, ¶ 8.) Plaintiff further alleges that as Plaintiff boarded the Shuttle, Defendant John Doe shut the Shuttle's doors and suddenly attacked Plaintiff by kicking him, injuring Plaintiff. (Complaint, ¶ 8.)

LEGAL STANDARD

Code of Civil Procedure Section 473(b) provides: "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

“[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-982.)

Relief under Code of Civil Procedure Section 473(b) is mandatory when based on an attorney’s affidavit of fault; otherwise, it is discretionary. (English v. IKON Business Solutions, Inc. (2001) 94 Cal.App.4th 130, 138.) An application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (Id. at 143.)

DISCUSSION

Moving Party's Argument

Plaintiff moves to vacate the court’s July 2, 2026 order granting summary judgment in favor of Westin Operator and Wesco Specialist on the grounds that the order was entered as a result of Plaintiff’s mistake, inadvertence, surprise, and excusable neglect. Plaintiff argues that as a pro per litigant, he made honest mistakes regarding the procedural rules applicable to a motion for summary judgment, and these mistakes constitute excusable neglect. Plaintiff argues that he acted with diligence upon realizing his procedural errors, Westin Operator and Wesco Specialist will not be prejudiced if the order is vacated, and Plaintiff has a meritorious opposition to the motion for summary judgment because triable issues of fact exist.

Opposing Party's Argument

Responding Defendants argue that Plaintiff is improperly invoking Code of Civil Procedure Section 473(b) because Plaintiff’s procedural failures were the result of Plaintiff’s lack of diligence, and because the court independently considered the merits of Responding Defendants’ motion for summary judgment and concluded that Responding Defendants met their burden. Responding Defendants argue that Plaintiff is attempting to relitigate issues that have already been decided by the court. Responding Defendants argue that the instant motion is frivolous and may warrant sanctions pursuant to Code of Civil Procedure Section 128.7(b).

Reply Argument

Plaintiff states that in the moving papers, Plaintiff mistakenly included several erroneous case citations. Plaintiff reiterates his argument that a self-represented litigant could reasonably misunderstand the applicable deadline for oppositions to motions for summary judgment. Plaintiff argues that Responding Defendants' request for sanctions is improper as the instant motion raises a legitimate dispute.

Merits of the Motion

Plaintiff moves to vacate the court's July 2, 2026 order granting the motion for summary judgment filed by Defendants Westin Operator and Wesco Specialist on the grounds that Plaintiff, as a pro per litigant, was unaware of the procedural rules governing an opposition to a motion for summary judgment. Plaintiff argues that his proposed opposition and separate statement will demonstrate the existence of triable issues of material fact.

The court finds that Plaintiff's motion is procedurally improper to the extent that Plaintiff attempts to move the court to reconsider the motion for summary judgment based upon new evidence provided by Plaintiff in opposition to the motion. In other words, the court finds that Plaintiff is attempting to treat the instant motion as a motion for reconsideration which is governed by Code of Civil Procedure Section 1008 rather than Code of Civil Procedure Section 473(b).

Further, the court finds that Plaintiff has failed to establish that his procedural mistakes were the result of excusable neglect. "Excusable neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances." (Alderman v. Jacobs (1954) 128 Cal.App.2d 273, 276.) Here, Plaintiff declares that he "was not aware of the special, much longer 20-day deadline required by Code of Civil Procedure section 437c(b)(2)," and that his failure to file a timely opposition brief was due to his mistake. (Plaintiff Decl., ¶ 4.) Plaintiff also declares that he "did not understand that Code of Civil Procedure section 437c(b)(3) required [Plaintiff] to file [his] response as a completely separate document, with a separate caption page, titled a 'Separate Statement,'" and declares that his failure to file a "standalone separate statement" was the result of Plaintiff's inadvertence. (Plaintiff Decl., ¶ 6.)

The court finds that Plaintiff's declaration is insufficient to provide grounds for relief pursuant to Code of Civil Procedure Section 473(b), as the applicable procedural rules are readily available, and Plaintiff has not addressed his failure to provide any evidence in opposition to the motion for summary judgment. As noted by Responding Defendants, the court's decision to grant summary judgment was independently based on the court's finding that Responding Defendants had met their burden of establishing that no triable issue of material fact exists.

For the above reasons, Plaintiff's Motion to Vacate the Order Granting Summary Judgment is DENIED as procedurally defective.

The court next addresses Responding Defendants' argument that the court exercise its authority pursuant to Code of Civil Procedure Section 128.7 to issue an Order to Show Cause why monetary sanctions should not be imposed.

Code of Civil Procedure Section 128.7(b) provides: "By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances," that "(1) [i]t is not being presented primarily for an improper purpose, such as to harass or cause unnecessary delay or needless increase in the cost of litigation" and "(2)[t]he claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law." (Code Civ. Proc. Section 128.7(b)(1-2).) If the court determines that subdivision (b) has been violated, the court has the authority to "impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation." (Code Civ. Proc. Section 128.7(c).)

While the court agrees that Plaintiff has improperly filed the instant motion in an attempt to relitigate the merits of Responding Defendants' motion for summary judgment, the court declines to exercise its authority pursuant to Code of Civil Procedure Section 128.7.

CONCLUSION

Based on the foregoing, Plaintiff's Motion to Vacate the Order Granting

Summary Judgment is DENIED.

Moving party is ordered to give notice of ruling.